

statements about Summer to third parties through a Facebook group called San Clemente Moms, which is moderated and administered by Erika Shawver.” (Cross-Complaint, ¶ 15.) In other words, the only specific allegation made against Shawver in the Cross-Complaint is that she moderates and administers a Facebook group called San Clemente Moms, in which group Cross-Defendant Fallon Winslow posted something that included a picture of Cross-Complainant Summer, but the post was removed approximately one day after a request to remove it was submitted. (Id. at ¶¶ 13-14.) The Cross-Complaint does not allege the content of the post other than the fact that it included a picture of Summer. (Ibid.)

“It cannot be disputed that Facebook's website and the Facebook pages at issue are ‘public forums,’ as they are accessible to anyone who consents to Facebook's Terms.” (*Cross v. Facebook, Inc.* (2017) 14 Cal.App.5th 190, 199.) Further, the Facebook post at issue contained content in some way related to the allegations of misconduct regarding Cross-Complainants and Jane Doe. (Cross-Complaint, ¶ 25 [“These third parties reasonably understood that the statements were about Cross-Complainants.”].) As discussed previously, the analysis is the same with respect to the third cause of action for intentional infliction of emotional distress and the fourth cause of action for negligent infliction of emotional distress.

Thus, Shawver has met her threshold burden of showing that the Cross-Complaint’s causes of action against her arise from an act in furtherance of Shawver’s protected conduct.

Cross-Complainants now must establish a probability of prevailing on their claims.

Step Two: Probability of Prevailing

Once the Cross-Defendants have met their burden, the burden shifts to the Cross-Complainants to establish that there is a probability it will prevail on their claims. (Code Civ. Proc. § 425.16(b)(1); *Taus v Loftus* (2007) 40 C4th 683, 713; *Equilon Enters. v Consumer Cause, Inc.* (2002) 29 C4th 53, 67.) “Probability” means “reasonable probability.” (*Schoendorf v U.D. Registry, Inc.* (2002) 97 CA4th 227, 238.)

To meet this burden, the Cross-Complainants must show that the complaint is legally sufficient and supported by a prima facie showing, by admissible and competent evidence, of facts that would be sufficient to sustain a favorable judgment on the Cross-Complainants’ claims under the applicable evidentiary standard.

		Cross-Complainants did not oppose the motions and thus failed to meet their burden to establish there is a probability they will prevail on their claims. Thus, the motions are granted. <u>Attorney's Fees</u> With exceptions that do not appear to apply here, a prevailing moving party on an anti-SLAPP motion is entitled to recover attorney's fees and costs. (Civ. Pro. Code, § 425.16(c)(1).) Harry and Megan seek an award of attorney's fees and costs in the amount of \$11,560, which is composed of 14.6 hours at an hourly rate of \$500 for attorney Raquel Flyer Dachner, 6 hours at an hourly rate of \$700 for attorney David Flyer, and a \$60 filing fee. Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of \$9,560 to Harry and Megan. The amount requested by Harry and Megan was reduced for a variety of reasons, including that the motion was not opposed, and that the time spent was not entirely justified. The amount awarded consists of 12 hours at an hourly rate of \$500 and 5 hours at an hourly rate of \$700, plus the \$60 filing fee. Shawver seeks an award of attorney's fees and costs in the amount of \$3,680, which is composed of 7 hours at an hourly rate of \$455 (including two hours to reply and argue the motion), a \$60 filing fee, and a first appearance fee of \$435. The recommendation is to reduce the time spent from 7 to 6 hours because the motion is unopposed but otherwise grant this request. Thus, Cross-Complainants are ORDERED to pay attorney's fees and costs in the amount of \$3,225 to Shawver. Moving Parties shall each give notice of this ruling.
12	Cardona vs. Volkswagen Group of America, Inc.	TENTATIVE RULING: For the reasons set forth below, Defendant Volkswagen Group of America, Inc.'s ("Volkswagen") Motion for Summary Adjudication as to the first cause of action for Breach of Express Warranty – Pursuant to California Commercial Code is DENIED. Volkswagen's Motion for Summary Adjudication as to the Prayer for Relief "for Civil Penalties in the amount of \$246,054.06" is GRANTED.